

Equivalent Citations

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Sanwat Khan And Kaloo Khan v. State Of Rajasthan .

Supreme Court Of India (Dec 9, 1952)

CASE NO.

On appeal by Special Leave from the Judgment and Order dated 18th April, 1950 of the High Court of Judicature for the State of Rajasthan at Jodhpur (Bapna and Dutta, JJ.) in Criminal Appeal No. 23 of 1949 and Murder Reference Case No. 3 of 1949 arising out of Judgment and Order dated 20th August, 1949 of the Court of the Sessions Judge, Nagaur in Criminal Original Case No. 10/1948-49, Criminal Appeal No. 99 of 1952, decided on 9th day of December, 1952

DISPOSITION

ALLOWED

JUDGES

- Justice Sudhi Ranjan Das
- Justice Mehr Chand Mahajan
- Justice Natwarlal Harilal Bhagwati

ATTORNEY

- H.J Umrigar, Advocate (appointed at the Govt. expense).
- N.C Kasliwal, Advocate, instructed by G.H Rajadhyaksha, Agent.

SUMMARY**Factual and Procedural Background**

The case concerns the killings of Mahant Ganeshdas, a wealthy resident of the temple of Shri Gopalji situated on a hillock near Panchota, and his servant Ganpatia, who lived with him at the temple. On the morning of 1 January 1948, both were found dead in the temple with injuries caused by an axe. The temple premises had been ransacked, with boxes and almirahs opened. Thakur Daulat Singh, a notable of the village, reported the matter to the police; at that time it was unknown who committed the robbery and murders or how the deaths occurred.

Following investigation, the appellant Kaloo Khan was arrested on 13 January 1948 and, on the same day, produced a gold kanthi (Ex. P 13 ~~from~~ ^{from} his bara where it was buried. The appellant Sanwat Khan was arrested on 18 January 1948 and, on 19 January, produced a silver plate (tashak) bearing an inscription from his house where it was buried. Both denied the charges and attributed their prosecution to enmity with Thakur Daulatsingh, the village jagirdar.

The Sessions Judge of Nagaur convicted both appellants under Section 302 IPC for the murders of the Mahant and Ganpatia and sentenced them to death. The conviction relied on circumstantial evidence, including testimony of Madari (PW 7), the recoveries of the kanthi and tashak, alleged sighting of the accused near the temple on the day before the murders, their purported departure from the village soon after, and a connection drawn to an axe (Ex. P 5.A). On appeal and sentence confirmation under Section 374 CrPC, the Rajasthan High Court at Jodhpur rejected almost all of these circumstances: it disbelieved PW 7, found it unproved that the axe belonged to Kaloo Khan, held that the accused had moved from the village months earlier (not after the occurrence), and treated the other circumstances as inconsequential. Nonetheless, it upheld the convictions by relying solely on the recoveries of the two articles at the instance of the accused, commuting the death sentences to imprisonment for life. The present appeal is by special leave against that decision.

Legal Issues Presented

1. Whether the recent and unexplained possession by the appellants of property stolen from the temple, without other direct or circumstantial evidence linking them to the killings or showing that the robbery and murders formed one transaction, could sustain convictions for murder under Section 302 IPC.
2. Whether, on the proved facts, the proper inference under Illustration A to Section 114 of the Evidence Act is limited to *theft* or receiving stolen property, and whether the appellants could be convicted for *theft* in a dwelling house under Section 380 IPC.
3. What sentence should be imposed if convicted of the lesser offence, given that the appellants had already undergone approximately three years of a sentence of transportation for life.

Arguments of the Parties

Appellants' Arguments

- Through Mr. Umrigar, the appellants contended that the recovery of articles belonging to the deceased at their instance could, at most, raise a presumption that they were thieves or receivers of stolen property, and was inconclusive on the question of their having committed the murders. Therefore, a conviction under Section 302 IPC could not be sustained solely on this basis.

State's Arguments

- The State supported the High Court's approach by relying on the Madras High Court decision in *Queen Empress v. Sami*, asserting that recent and unexplained possession of stolen property could constitute evidence even on a charge of murder.

Table of Precedents Cited

Precedent	Rule or Principle Cited For	Application by the Court
Queen Empress v. Sami	In cases where murder and robbery are parts of one transaction, recent and unexplained possession of stolen property, while presumptive evidence of robbery, may similarly be evidence of murder. The Court noted that the headnote did not accurately reflect the decision's nuance.	Distinguished. The Court found no evidence, direct or circumstantial, that the robbery and murders here formed one transaction; the time of the events was unknown and only discovered the next morning. Hence, the principle did not apply.
Bhikha Gober v. Emperor, AIR 1943 Bom 458	Mere production, shortly after a murder, of ornaments that were on the murdered person is insufficient to justify the inference that the accused committed the murder; further material connecting the accused to the murder is required.	Followed. The Court adopted this principle to hold that possession of stolen property alone could not sustain a murder conviction without additional connecting evidence.
State v. Shankar Prasad, AIR 1952 All 776	Survey of decisions where presumption of guilt was drawn from possession soon after murder; emphasized that each decision turns on its own facts and no general proposition of law can be deduced.	Approved in principle. The Court reiterated that no hard and fast rule governs what inference to draw from possession; suspicion cannot replace proof.

Court's Reasoning and Analysis

The Court noted at the outset that there was no direct evidence of the appellants' participation in the murders. The High Court had already rejected the key circumstantial evidence relied upon by the Sessions Judge (including PW 7 Madari's testimony, the alleged ownership link to the axe, the claim of departure from the village after the occurrence, and other asserted circumstances). With these discarded, the High Court sustained the convictions solely on the recoveries of the gold kanthi and the silver plate at the appellants' instance.

Assessing this solitary circumstance, the Court held that the unexplained possession of stolen property shortly after the incident, by itself, supports only the inferences recognized by Illustration A to Section 114 of the Evidence Act—namely, that the possessor is either a thief or a receiver of stolen property—unless the facts exclude all other hypotheses and point to murder. The appellants produced the articles approximately a fortnight after the *theft*. There was no evidence, direct or circumstantial, of how, when, or by whom the murders and robbery were committed; the bodies and the ransacking were discovered only the next morning. On these facts, it was reasonably possible that the appellants removed the articles after the killings or received them from the actual perpetrators.

In addressing the State's reliance on *Queen Empress v. Sami*, the Court clarified that the decision applies where murder and robbery are shown to be parts of a single transaction, in which case recent unexplained possession may be evidence on the murder charge as well. As there was no proof here that murder and *theft* were one transaction, that principle was inapposite. Instead, the Court endorsed the approach in *Bhikha Gobar v. Emperor* (AIR 1943 Bom 458) requiring further material to connect possession to the act of murder. The Court further observed, in line with the survey noted in *State v. Shankar Prasad* (AIR 1952 All 776), that no hard and fast rule governs the inference from possession; each case turns on its own facts, and suspicion cannot substitute for proof.

Given these principles, the Court held that the convictions under Section 302 IPC could not be sustained. At the same time, the recoveries and circumstances established that the appellants either participated in the *theft* or received stolen property knowing it to be stolen. As the appellants were charged with having committed *theft* in a building while armed with certain weapons, the Court concluded they could be convicted of *theft* in a dwelling house under Section 380 IPC.

On sentence, the Court took into account that the appellants had already undergone approximately three years of a sentence of transportation for life. It found that the punishment already suffered would meet the ends of justice and therefore imposed a sentence of three years' rigorous imprisonment under Section 380 IPC, directing their release as they had already served that term.

Holding and Implications

Convictions under Section 302 IPC set aside; appellants acquitted of murder.

Appellants convicted under Section 380 IPC (*theft* in a dwelling house); sentenced to three years' rigorous imprisonment; release directed as the sentence had already been undergone.

Implications: The decision underscores that recent, unexplained possession of stolen property, without more, cannot justify a conviction for murder. Unless the evidence shows that murder and *theft* formed one transaction or otherwise provides additional material connecting the accused to the killing, the permissible inference under Illustration A to Section 114 of the Evidence Act is limited to *theft* or receiving stolen property. The Court emphasized that no hard and fast rule governs such inferences and that suspicion cannot

take the place of proof. The ruling affects the parties directly by substituting a *theft* conviction for the murder conviction and ordering their release; it does not purport to lay down a rigid new rule but reaffirms the necessity of cogent connecting evidence for a murder conviction.

JUDGMENT

The Judgment of the Court was delivered by

Mehr Chand Mahajan, J.— The appellants, Sanwat Khan and Kaloo Khan, were convicted by the Sessions Judge of Nagaur for an offence under Section 302, IPC for the murder of one Mahant Ganeshdas and his servant Ganpatia and were sentenced to death. They appealed to the High Court of Judicature for Rajasthan at Jodhpur and their case also came up for confirmation of the sentence under Section 374 CrPC, before that Court. The High Court confirmed the conviction but commuted the sentence of death into one of imprisonment for life. To this extent the appeal of both the accused persons was allowed. This is an appeal by special leave against the above decision of the High Court.

2. Shortly stated, the facts of the case are that Mahant Ganeshdas who was a wealthy person used to live in the temple of Shri Gopalji situated on a hillock near Panchota about a mile and a half from that village. Ganpatia Daroga used to live with him at the temple. On the morning of 1st January, 1948, it was discovered that both of them were lying dead in the temple. Death took place on account of the injuries caused to them by means of an axe. The house had also been ransacked and boxes and almirahs opened. The matter was reported to the police by Thakur Daulat Singh, a notable of that village. At the time the report was made it was not known how the Mahant and Ganpatia had met their end and who was responsible for the robbery and murder.

3. As a result of the investigation by the police the appellant Kaloo Khan was arrested on 13th January, 1948 and on the same day he produced a gold kanthi (Ex. P-13-A) from his bara where it was lying buried in the ground. Sanwat Khan, appellant, was arrested on 18th January, 1948 and on the 19th, he produced a silver plate (tashak) bearing a certain inscription from his house where it lay buried in the ground. They were committed to the Court of Session with the result above mentioned. The accused denied the charge and attributed their prosecution to enmity with Thakur Daulatsingh, the jagirdar of the village.

4. There is no direct evidence whatsoever proving the participation of the two appellants in the murder of the Mahant and Ganpatia. The learned Sessions Judge in convicting the appellants placed reliance on the evidence of one Madari, PW 7, and the recovery of the kanthi and tashak at their instance. He also took into consideration the fact that the accused were seen near the place of occurrence on the day previous to the murder and that soon after they left the village. Reliance was also placed on certain evidence connecting the accused with the axe, Ex. P-5.A. The High Court, however, held that the evidence of Madari, PW 7, was not trustworthy and that it was not proved that the axe belonged to Kaloo Khan. It further held that it was not correct to say that the accused had left the

village after the occurrence because they had gone away to settle in a different place about a couple of months before this incident. The other circumstances relied upon by the Sessions Judge were held to be of no consequence. Having rejected practically the whole of the circumstantial evidence on which the learned Sessions Judge had placed reliance, the High Court upheld the conviction of the appellants by relying on the solitary circumstance of the recovery of the two articles abovementioned at the instance of the accused. It was said that in the absence of any explanation about the possession of the articles belonging to the Mahant by the accused, the inevitable inference was that they were the persons who had some hand in the dastardly act.

5. Mr Umrigar for the appellants contended that the evidence of the recovery of the articles belonging to the deceased at the instance of the accused at the most could lead to a presumption that they were the thieves or had received the articles knowing them to be stolen property, but it was inconclusive on the question of their having committed the murders. In our judgment, this contention has force. The unexplained possession of stolen property is the only circumstance appearing in the evidence against the accused charged with murder and *theft*, and they could not be convicted of murder unless their possession of the property could not be explained on any other hypothesis except that of murder. In the absence of any evidence whatsoever of the circumstances in which the murders or the robbery took place, it could easily be envisaged that the accused at some time or other seeing the Mahant and Ganpatia murdered, removed the articles produced by them from the temple or received them from the person or persons who had committed the murder. The prosecution led evidence to prove that Mangu Khan, the father of these two persons, was planning to murder the Mahant since a long time. Madari, PW 7, who is an ex-convict, deposed that he was also being approached to join in the conspiracy to murder the Mahant. It is not improbable that any of these two or somebody else might have murdered the Mahant and some of the stolen property came into the possession of these two brothers. Be that as it may, in the absence of any direct or circumstantial evidence whatsoever, from the solitary circumstance of the unexplained recovery of the two articles from the houses of the two appellants the only inference that can be raised in view of **Illustration A to Section 114 of the Evidence Act** is that they are either receivers of stolen property or were the persons who committed the *theft*, but it does not necessarily indicate that the *theft* and the murders took place at one and the same time. The accused produced these articles about a fortnight after the *theft* and the maximum that can be said against them is that received these goods knowing them to be stolen or that they themselves stole but in the absence of any other evidence, it is not possible to hold that they are guilty of murder as well.

6. The learned counsel for the State in support of the view taken by the High Court placed reliance on a decision of the Madras High Court in *Queen Empress v. Sami*. The headnote of the report says that “recent and unexplained possession of stolen property which would be presumptive evidence against the prisoners on the charge of robbery would similarly be evidence against them on the charge of murder”. This headnote, however, does not accurately represent the decision given by the learned Judges. In the particular

circumstances of that case it was observed that in cases in which murder and robbery are shown to form parts of one transaction, recent and unexplained possession of the stolen property while it would be presumptive evidence against a prisoner on the charge of robbery would similarly be evidence against him on the charge of murder. Here, there is no evidence, direct or circumstantial, that the robbery and murder formed parts of one transaction. It is not even known at what time of the night these events took place. It was only late next morning that it was discovered that the Mahant and Ganpatia had been murdered and looted. In our judgment, Beaumont, C.J and Sen, J. in *Bhikha Gober v. Emperor* [AIR 1943 Bom 458](#) rightly held that the mere fact that an accused produced shortly after the murder ornaments which were on the murdered person is not enough to justify the inference that the accused must have committed the murder. There must be some further material to connect the accused with the murder in order to hold him guilty of that offence. Our attention was drawn to a number of decisions which have been summed up in a Bench decision of the Allahabad High Court in *State v. Shankar Prasad* [AIR 1952 All 776](#) in some of which a presumption was drawn of guilt from the circumstance of possession of stolen articles soon after a murder. We have examined these cases and it appears to us that each one of these decisions was given on the evidence and circumstances established in that particular case, and no general proposition of law can be deduced from them. In our judgment, no hard and fast rule can be laid down as to what inference should be drawn from a certain circumstance. Where, however, the only evidence against an accused person is the recovery of stolen property and although the circumstances may indicate that the *theft* and the murder must have been committed at the same time, it is not safe to draw the inference that the person in possession of the stolen property was the murderer. Suspicion cannot take the place of proof.

7. For the reasons given above we cannot maintain the conviction of the appellants under Section 302 IPC and we therefore acquit them of that offence. It is, however, clear that both the appellants either took part in the *theft* or received the stolen property with the knowledge that it had been stolen. The appellants were charged with having committed *theft* in a building armed with certain weapons. They can thus be convicted for having committed *theft* in a dwelling house. We therefore hold them guilty of the offence under Section 380 IPC. Learned counsel appearing for them urged that in view of the fact that they have been undergoing the sentence of transportation for life for the last three years, the appropriate sentence in their case should be the one they have already undergone. In our opinion, the contention that the punishment already suffered by the accused will meet the ends of justice in this case has force, and we accordingly sentence them under Section 380 IPC to three years' rigorous imprisonment and as they have already undergone it, we direct their release. The appeal is allowed to the extent above indicated.